TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar**. Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **12:00 p.m**. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling**.

May 26, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	**Medina vs. Hernandez** **25-01515721**	Demurrer to Complaint Continued to 07/07/2026 at 10:00 AM to be heard w/Motion to Strike scheduled for 07/07/2026. Moving party to give notice.
102	**Simonoff vs. Chuze Fitness Franchises, Inc.** **26-01540347**	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint Defendants CHUZE FITNESS FRANCHISES, INC and RACHAS, INC. dba CHUZE FITNESS (erroneously sued herein as RACHAS, INC.) ("Defendants") demur to Plaintiff's (MALCOLM SIMONOFF) (Plaintiff) Complaint on the grounds that the complaint fails to state facts sufficient to constitute

		a cause of action against the Defendants for gross negligence. Defendants seek an order striking the: 1. Fourth Cause of Action: Gross Negligence. (Complaint at pages 14-15, lines 9-27.) 2. DAMAGES (f.): Punitive damages (where applicable.)" (Complaint at page 17, line 24.) 3. DAMAGES: "Plaintiff also seeks recovery of allowable costs of suit and attorneys' fees, to the extent authorized by applicable statute and/or contractual agreement, according to proof …" (Complaint at page 17, lines 25-27.) 4. PRAYER FOR RELIEF (d.): "For punitive damages according to proof, as allowed by law, pursuant to Cal. Civ. Code section 3294" (Complaint at page 18, lines 4-5.) 5. PRAYER FOR RELIEF (f): "… and for reasonable attorneys' fees to the extent allowable by statute and/or contractual agreement, according to proof" (Complaint at page 18, lines 8-9). Initially, the Court notes the Opposition, filed 5/15/2026, is untimely. The Court will not consider it, as it should have been filed and served on 5/12/2026. 4th c/a for Gross Negligence: Gross negligence is pleaded by alleging the traditional elements of negligence: duty, breach, causation, and damages. (Jones v. Wells Fargo Bank (2003) 112 Cal.App.4th 1527, 1541, 5 Cal.Rptr.3d 835.) However, to set forth a claim for "gross negligence" the plaintiff must allege extreme conduct on the part of the defendant. (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1185–1186, 7 Cal.Rptr.3d 552, 80 P.3d 656 (Eastburn).) The conduct

		alleged must rise to the level of "either a ' " 'want of even scant care' " ' or ' " 'an extreme departure from the ordinary standard of conduct.' " ' [Citations.]" (Santa Barbara, supra, 41 Cal.4th at p. 754, 62 Cal.Rptr.3d 527, 161 P.3d 1095, fn. omitted.) Rosencrans v. Dover Images, Ltd. (2011) 192 Cal.App.4th 1072, 1082. Here, in the general allegations (which are incorporated by reference into the 4th cause of action), Plaintiff pleads that he was performing chest-supported weighted dumbbell rows with both arms and hands on the subject equipment when the equipment suffered a catastrophic structural failure. (Complaint¶31.) Plaintiff's hands and finger became trapped and crushed between the equipment and the dumbbells. (Id.¶32.) Plaintiff alleges that the "bench was visibly broken after the incident, indicating a structural failure, such as a detached or broken component, rather than ordinary wear and tear or patron misuse." (Id.33.) Plaintiff pleads that "On information and belief, prior to Plaintiff's injuries, other gym patrons and/or staff observed that the Subject Equipment was unstable, loose, wobbly, or otherwise in need of repair." (Id.¶44.) Plaintiff pleads that Defendants employed people responsible for inspecting and maintaining equipment, but those people were "untrained, unqualified, and/or incompetent." (Id.¶48.) Plaintiff also pleads that Defendants failed to employ written maintenance protocols, require staff to have certifications, etc. (Complaint¶49,) Plaintiff also pleads that Defendants "knew, or should have known, about the hazardous condition of the Subject Equipment, which should have been addressed by basic facility maintenance standards and safety obligations" (Complaint¶46.) Although a bit general, to the extent these allegations are true (as established through discovery), a jury could determine that an extreme departure from ordinary

		standard of care occurred here. That is, if Defendants knew there was a wobbly bench being used by patrons, and failed to either remedy or warn the patrons of it, this could be deemed gross negligence. Demurrer is OVERRULED. As to the Motion to Strike it is DENIED except as to Item 3 and 5 above, which is GRANTED with 20 days leave to amend. There is no basis for attorney's fees pled in the Complaint. As to punitive damages, ¶51 is sufficient to put Defendants on notice of the claim against them and could warrant punitive damages, if true. Defendants to give notice
103	**Nguyen vs. Orange County Transportation Authority** **25-01484412**	Motion to Be Relieved as Counsel of Record The unopposed motion of attorney Donald Dunham of the Law Offices of Dunham, Ramirez & Van LLP to be relieved as counsel for Plaintiff Tammy Banh Nguyen is GRANTED. Service on the client and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. **The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client.** Moving attorney to give notice.
104	**Kinecta Federal Credit Union vs. Ogi** **25-01509319**	Motion to Set Aside/Vacate Default and Judgment Defendant, Jeffrey Masayuki Ogi, moves for an order setting aside and vacating the entry of default and

		default judgment entered against him on January 31, 2026. Plaintiff's opposing papers were late-filed and late-served on May 14, 2026. In addition, and significantly, Plaintiff's opposing papers were not served on Defendant's counsel of record in this action. Accordingly, the Court **CONTINUES** the motion to set aside and vacate default and default judgment to **June 30, 2026** at 10:00 a.m. in Department C25. Plaintiff is ORDERED to properly serve Defendant's counsel of record, and to file proof of service of the same, no later than nine (9) court days before the continued hearing date. A reply may be filed per Code based on the continued hearing date. The Court orders clerk to give notice
105	**Ellis vs. Volkswagen Group of America, Inc.** **25-01503772**	Motion for Attorney Fees Plaintiff, Carl Mason Ellis, moves for attorneys' fees and costs in the total amount of $26,036.50, consisting of a lodestar amount of $23,183, including anticipated fees, $535.24 in costs, and $2,318.30 for a multiplier of 0.1x. The Motion is GRANTED, in part, DENIED, in part. The Court GRANTS attorneys' fees in the reduced amount of $16,903. The Court DENIES a multiplier. The Court GRANTS costs in the amount of $535.24. Objections to the Declaration of Nadia Alam, Esq. The Court OVERRULES Objection Nos. 1-16, and 18.

		The Court SUSTAINS Objection No. 17. Entitlement to Attorneys' Fees and Costs Civil Code section 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794(d).) "A prevailing party under [Code of Civil Procedure] section 1032 is not necessarily a prevailing party under a separate attorney fee statute. [Citation.] As explained in Wohlgemuth v. Caterpillar Inc. (2012) 207 Cal.App.4th 1252, 144 Cal.Rptr.3d 545, regarding the [Song-Beverly Consumer Warranty] Act: "[W]here (as here) a fee-shifting statute is concerned, a number of Courts of Appeal have taken the approach that attorney fees recovery is governed by the fee-shifting statute itself, rather than a rigid adherence to Code of Civil Procedure section 1032. Under this analysis, if the particular fee-shifting statute does not define prevailing party, then the trial court should simply take a pragmatic approach to determine which party has prevailed. That is, the trial court would determine which party succeeded on a practical level, by considering the extent to which each party realized its litigation objectives. [Citations.] Section 1794(d) is likewise a remedial fee-shifting statute, and thus the same practical approach to the issue of prevailing party is applicable to section 1794(d).' [Citation.]" (MacQuiddy v. Mercedes-Benz USA, LLC (2015) 233 Cal.App.4th 1036, 1047.) Here, the parties entered into a Settlement Agreement and Release which provides, in part, that Defendant will send payment in the amount of $27,620.74 to TD Auto Finance to pay off the lien for Plaintiff's 2024

		Audi Q4 (the "Subject Vehicle"), and that in exchange for surrender of the Subject Vehicle, Defendant will pay to Plaintiff the total sum of $66,972.62, minus the payoff amount paid by Defendant to TD Auto Finance. (Declaration of Nadia Alam ("Alam Decl."), ¶ 15, Ex. E, Settlement Agreement and Release, ¶ A(1), (3).) The Settlement Agreement and Release also states, in part: "If the parties are unable to agree on attorney fees and costs to be paid in this action within 30 days after Plaintiff surrenders the Subject Vehicle, VWGoA will pay Plaintiff's attorney fees and litigation costs in an amount determined by the Court, on Plaintiff's noticed motion, to have been reasonably incurred by Plaintiff in connection with the commencement and prosecution of the Subject Lawsuit. If Plaintiff accept this Offer, VWGoA will stipulate that Plaintiff is the prevailing party only for purposes of any motion for attorney's fees, expenses, and costs; . . . ." (Ex. E to Alam Decl., Settlement Agreement and Release, ¶ A(3).) Based on the foregoing, Plaintiff is the prevailing party under Civil Code section 1794(d) and is entitled to recover attorneys' fees and costs and expenses. Reasonableness of Hourly Rates A court assessing a claim for attorney's fees under Civil Code section 1794(d) uses the lodestar method to determine the reasonableness of such a claim. (Mikhaeilpoor v. BMW of North America (2020) 48 Cal.App.5th 240, 247-248 ("Mikhaeilpoor").) " 'The plain wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of the time spent and the amount charged . . .. "It requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the

		complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." . . . [The] prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount.' [Citation.]" (McKenzie v. Ford Motor Company (2015) 238 Cal.App.4th 695, 698, 703; Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247 [same].) " ' "The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. [Citations.] This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel. [Citations.]" ' [Citations.]" (Pasternack v. McCullough (2021) 65 Cal.App.5th 1050, 1055.) "In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41 [citations omitted].) Plaintiff's counsel seeks fees for four timekeepers: three (3) attorneys and one (1) paralegal. Plaintiff contends that the requested hourly rates are reasonable based on each timekeeper's experience, rates billed by other attorneys in Song-Beverly Consumer Warranty

		cases, and rates approved in other Song-Beverly Consumer Warranty cases. Defendant contends that Plaintiff has not met its burden to show the reasonableness of the requested rates, that the rates requested are not reasonable, that the Court should use an average of the rates set forth in the Defendant contends that Plaintiff has not shown that the requested hourly rates are reasonable, that $450 per hour is unreasonably high for Ms. Alam, that the rates requested are excessive and should be reduced to $350 per hour for Mr. Fhima, and $300 per hour for Ms. Diamse and Ms. Alam based on an average of rates set forth in the Real Rate Report. Defendants also contend that none of the listed lawyers referenced by Counsel are out of Orange County. Initially, the Court has sustained the objections to the hourly rates of other lemon law attorneys and therefore they are not considered. The Court declines to utilize the 2021 Real Rate Report cited by Defendant. Defendant provides no other evidence or support for the requested reduced rates. Plaintiff requests hourly rates of $600 per hour in 2025 and $625 per hour in 2026 for attorney Aaron Fhima, who was admitted in 2014 and is the principal of Neale & Fhima. (Alam Decl., ¶ 24(a).) Plaintiff's counsel shows that the $600 hourly rate has for Mr. Fhima has been awarded in other cases. (See Exs. L, N to Alam Decl.) Based on the Court's own knowledge and familiarity with the legal market, the experience and skill of the attorney requesting the fees, and the rate determinations in other cases, these hourly rates the prevailing rates charged by attorneys of similar experience specializing in consumer law in the community of Orange County. Plaintiff requests an hourly rate of $525 per hour in 2025 for attorney Gabrielle Diamse, who was admitted in 2020, has been an attorney of Neale & Fhima since

		February 2021, and was promoted to senior associate in January 2025. (Alam Decl., ¶ 24(b).) Plaintiff does not identify any rate determination finding this rate to be reasonable for Ms. Diamse, however, a order from August 2022 in San Diego found Ms. Diamse's rate of $425 per hour to be reasonable. (See Ex. P to Alam Decl.) Based on the Court's own knowledge and familiarity with the legal market and the experience and skill of the attorney requesting the fees, the requested hourly rate of $525 for Ms. Diamse, though on the high end, is not entirely unreasonable. Therefore, the requested hourly rate of $525 per hour is reasonable and commensurate with the prevailing rates charged by attorneys of similar experience specializing in consumer law in the community of Orange County. Plaintiff requests an hourly rate of $450 per hour for attorney Nadia Alam, who was admitted in 2024, and has been an associate of Neale & Fhima since September 2025. (Alam Decl., ¶ 24(c).) Based on the Court's own knowledge and familiarity with the legal market and the experience and skill of the attorney requesting the fees, the requested hourly rate of $450 for Ms. Alam is not reasonable. Although the reply attaches an order which found this rate for Ms. Alam to be reasonable, the order is attached to the reply without any evidentiary basis. As such, the Court does not consider the two orders attached to the reply. The Court finds an hourly rate of $375 per hour for Ms. Alam to be reasonable and commensurate with the prevailing rates charged by attorneys of similar experience specializing in consumer law in the community of Orange County. Lastly, Plaintiff requests an hourly rate of $220 for Cindie Ianni ("Ianni"). No support is provided for this rate. However, it is apparent from the billing records and orders from other cases that this is Ianni is a paralegal and that the requested hourly rate of $220 per hour has been found reasonable in other cases. (See. Ex. A to Alam Decl.) Defendant does not dispute this

		rate. Based on the Court's own knowledge and familiarity with the legal market and this prior order from Los Angeles, the Court finds that the requested hourly rate of $220 per hour for Ianni to be reasonable. Reasonableness of Time Expended A court has wide discretion in determining what constitutes reasonable attorney fees. The court typically makes this determination based upon declarations without live testimony. The value of legal services performed in a case is a matter in which the court has its own expertise and thus may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096; Padilla v. McClellan (2001) 93 Cal.App.4th 1100, 1107; Syers Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 698 ["experienced trial judge is the best judge of the value of professional services rendered in his court"].) To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may "attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc. (2008) 163 Cal.App.4th 550, 563-564.) "The party opposing the fee award can be expected to identify the particular charges it considers objectionable. A reduced award might be fully justified by a general observation that an attorney over litigated a case or submitted a padded bill or that the opposing party has stated valid objections." (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 101.) A trial court is not required to issue any explanation of its decision regarding a fee award. (Rancho Mirage

		Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 264; Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 65.) Plaintiff's counsel declaration filed in support of the motion provides that counsel billed 34.6 hours prosecuting this case (not 34.5 asserted in the points and authorities). (Alam Decl., ¶ 7.) Based on the Court's calculations of the billing entries, 36 hours were billed, excluding the first entry. The Court shall rely on the billing records. Plaintiff's counsel also provides that the lodestar amount is $19,808. (Alam Decl., ¶ 7.) However, Plaintiff provides that a true and correct copy of time and expense records of attorneys who performed services in this case are attached as Exhibit A, and Exhibit A has a total of $20,483. The Court reviews the hours expended based on the billing records attached as Exhibit A. Defendant contends that the hours should be reduced or deducted entirety as unnecessary and unreasonable for clerical and administrative tasks that were billed at attorney rates; paralegal tasks that were improperly billed at attorney rates; excessive fees that were billed for template documents; duplicative, excessive, unsupported and vague billing; unnecessary $3,900 flat fee for case initiation; impermissible block billing; and unreasonable billing for the instant fee motion. Each argument will be addressed in turn. Clerical and Administrative Tasks Billed at Attorney Rates. Defendant contends that Plaintiff's counsel billed for telephone calls with client to request basic documents, and sending the settlement release to the client which are these tasks that are routinely handled by secretaries. Therefore, Defendants request that Entry Nos. 35, 45, 65, 67, 69, 74 and 75, should be adjusted to reflect a reasonable secretary rate of $100. (Ex. J to

		Declaration of Chiamaka S. Enemuoh ("Enemuoh Decl.").) Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (Missouri v. Jenkins (1989) 491 U.S. 274, 288, fn. 10.) Calendaring, preparing proofs of service, internal filing, preparing binders for a hearing, and scanning are examples of tasks that have been found to be purely clerical and thus non-compensable or compensable at a reduced billing rate. (Save Our Uniquely Rural Community Environment v. County of San Bernardino (2015) 235 Cal.App.4th 1179, 1187.) Entry Nos. 35, 45, 65, 67, 69, 74 and 75 concern communications with opposing counsel and the client regarding the settlement agreement and relating to the settlement for effectuation of the same. Such communications are not purely clerical or secretarial. Therefore, no adjustment is made. Paralegal Tasks Billed at Attorney Rates. Defendant contends that Plaintiff's counsel billed at attorney rates for paralegal tasks, and that documents regarding surrender including receipt, follow up, and forwarding of title authorization forms that are typically handled by paralegal(s) were billed by Plaintiff's counsel at high rates. Defendant contends that the Court should adjust Entry Nos. 58, 59, 61, 63, 66, 70, 71, 72, 73, 76, 77, and 78, to reflect the reasonable rate of $200. (Ex. J to Enemuoh Decl.) As the entries identified concern documents and communications related to the effectuation of the settlement. Defendants do not establish that these work related to these kinds of documents and communications are paralegal tasks. Therefore, no adjustment is made. Excessive Fees Associated with Template Documents. Defendant contends that Plaintiff's counsel relies on boilerplate pleadings and discovery templates, that Plaintiff's Complaint, discovery requests and responses, deposition notices, and the instant fee

		motion are a standard form document used in all cases Plaintiff's counsel brings against Defendants, and that these templates are nearly identical across cases against Defendant, requiring minimal effort to update with Plaintiff-specific details. Defendant asserts that such overbilling demonstrates inefficiency and warrants significant reductions, and that the Court should adjust Entry Nos. 12, and 13, 20, 21, 24, 25, 26, 27, 31, 32, and 33, and reduce the billing entry by at least 9 hours, namely 2 hours reduction for the discovery requests to Defendant; 2 hours reduction for Plaintiff's responses to basic written discovery; and 5 hours reduction for the fee motion. Plaintiff acknowledges that forms are used. The use of forms still requires time to particularize discovery requests, discovery responses, and a fee motion to a specific case. In reviewing the entries, the time expended appears reasonable. Therefore, no adjustment is made. Duplicative, Excessive, Unsupported and Vague Billing. Defendant asserts that there is a duplicative entry where two different attorneys billed to review Defendant's initial evidence preservation letter which addresses the case management meet and confer. The Court does not find the entry on September 16, 2025, by Ms. Diamse and the entry on October 6, 2025, by Ms. Alam to be duplicative. Therefore, no deduction is made. Defendant also contends that there were excessive billing entries for review of routine documents and pleadings, and that Entry Nos. 1, 2, 5, 6, 10, 11, 23, should be reduced. (Ex. J to Enemuoh Decl.) In reviewing the entries, the time expended appears reasonable. Therefore, no reduction is made. $3,900 Flat Fee for Case Initiation. Defendant contends that Plaintiff's counsel's $3,900 flat rate for case initiation is excessive and unsupported, and that $3,900 should be stricken in its entirety or reduced to reflect a billable hour. Defendant does not show that this flat rate was reasonably incurred by Plaintiff in connection

		with the commencement and/or prosecution of this action. The Court adjusts Entry No. 1 to deduct $3,900 but allows one hour expended by Mr. Fhima. Block Billing. Defendant contends that most of Plaintiff's counsel's billing entries are block billed, and that these entries are ambiguous, making it impossible for Defendant, or this Court to decipher how much time was spent on each individualized task. Defendant asserts that the Court should strike Entry No. 1; and adjust Entry Nos. 2, 3, 4, 5, 10, 12, 13, 15, 16, 17, 18, 30, 33, 34, 38, 41, 43, 52, 58, 61, 63, and 76. "Trial courts retain discretion to penalize block billing when the practice prevents them from discerning what tasks are compensable and which are not [Citations.]" (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1010-1011.) The Court has reduced Entry No. 1 above. In reviewing Entry Nos. 2, 3, 4, 5, 10, 12, 13, 15, 16, 17, 18, 30, 33, 34, 38, 41, 43, 52, 58, 61, 63, and 76, the entries are block billed, but the tasks are compensable and reasonable and the total time expended for all tasks in each entry is not unreasonable. Therefore, no adjustment is made. Billing for Plaintiff's Fee Motion. Defendant contends that Plaintiff's counsel seeks compensation for over 15 hours, including close to 7.8 hours for the fee motion, plus an additional 7.5 hours anticipated to be spent for review of the opposition, reply, and hearing on the motion, and that the time claimed for the motion is excessive and unreasonable as it is a "cookie-cutter" motion requiring minimal effort that was duplicative of prior work. Defendant also contends that reviewing billing entries and records are not properly billed to one's clients, such that the Court should disallow Entry No. 80 in its entirety. Defendant thus asserts that the Court should eliminate Entry No. 79 and 80 as unnecessary, totaling 1 hour, and reduce the 6.8 hours billed time for the fee motion by 4 hours, to Entry Nos.

		81, 83, 84, 85, and 86, resulting in at least 5 hours reduction. The Court deducts Entry No. 80 (0.8 hours by Ms. Alam). The Court finds Entry No. 83 to be excessive and deducts 0.4 hours from the 0.9 hours claimed by Mr. Fhima, allowing 0.5 hours. The Court finds all other entries for hours billed and incurred for the instant fee motion to be reasonable. Additional Anticipated Time Plaintiff's counsel seeks additional attorney's fees for anticipated time including an additional 4 hours reviewing Defendant's opposition and preparing a reply, and 2 hours preparing for, traveling to, and attending the hearing on the motion, resulting in an additional $2,700 in anticipated attorney's fees for these tasks. (Alam Decl., ¶ 8.) A reply has been filed but provides no additional evidence to provide an update as to the hour actually incurred. Nevertheless, as a reply has been filed, and upon review of the opposition, the Court finds that the requested additional time to be reasonable. The Court GRANTS an additional $2,250 ($375 x 6.0 hours) for the instant fee motion. Further, Plaintiff anticipates spending an additional 1.5 hours reviewing Defendant's motion to tax costs and preparing an opposition, resulting in an additional $675 in anticipated attorneys' fees for these tasks. (Alam Decl., ¶ 9.) No motion to tax costs has been filed. Thus, this request for additional fees is DENIED. Based on all of the above and the Court's calculations, the Court deducts 0.8 hours from Ms. Alam's 26.4 billed hours resulting in a total of 25.6 hours expended.

		25.6 hours multiplied by the reduced hourly rate of $375 per hour is $9,600. As for Mr. Fhima, the Court adjusts Entry No. 1 to reflect 1.0 hours at $600 per hour and adjusts Entry No. 83 to reflect 0.5 hours at $625 per hour for a total of $912.50. For Ms. Diamse, the 7.3 hours reasonably incurred multiplied by the $525 hourly rate is $3,832.50. With regards to Ianni, the 1.4 hours reasonably incurred multiplied by the $220 hourly rate is $308. Lastly, the Court allows additional fees for the instant fee motion in the amount of $2,250. Thus, the Court GRANTS a reduced lodestar in the amount of $16,903. Multiplier Plaintiff seeks a lodestar multiplier of 0.1x for a fee enhancement of $2,318.30 based on delay of payment and Plaintiff having obtained full compensation under the statute. Defendant contends that given the routine nature of this case, lack of complexity, and the minimal litigation required, a negative multiplier is appropriate. “The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased.” (Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247.) “The trial court is neither foreclosed from, nor required to, award a multiplier. [Citations.]” (Ibid.) The lodestar may be adjusted based on factors including (1) the novelty of and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ketchum v. Moses (2001) 24 Cal.4th

		1122, 1132.) "Such fee enhancements are intended to compensate for the risk of loss generally in contingency cases as a class. [Citation.]" (Id. at p. 1133.) This is a standard lemon law action that settled in less than three months after it was filed, and within five (5) weeks after Defendant appeared in the action, with the issue of fees and costs outstanding. (Enemuoh Decl., ¶¶ 4, 5.) The Court does not find an enhancement or negative multiplier warranted under the circumstances of this case. Any risk or delay is already included within the lodestar amount. Both parties' requests are DENIED. Costs Plaintiff seeks recovery of $535.24 in costs (incorrectly stated as $532.20 in points and authorities and Alam Declaration) including the fee for this motion. (See Ex. D to Alam Decl., Memorandum of Costs.) Defendant does not oppose the costs and has not filed a motion to tax costs. The Court GRANTS costs $535.24. Plaintiff to give notice.
106	**Duncan vs. Hoskins** **16-00844595**	Motion for Reconsideration Defendants Christopher Hoskins and defendant/cross-complainant Colorado Storage Partners, LLC move the Court for reconsideration of its February 24, 2026, order granting Kathleen Duncan and 3D Co Holdings, LLC's petition to confirm arbitration award. The Motion is DENIED. A motion for reconsideration made by a party must be based on new or different facts, circumstances, or law than those before the court at the time of the original

		ruling. (Code Civ. Proc. § 1008(a).) The motion must also be accompanied by an affidavit from the moving party that states: (1) what application was previously made; (2) when and to what judge; (3) what order was made; and (4) what new or different facts, circumstances or law are claimed to be shown. (Ibid.) "[F]acts of which the party seeking reconsideration was aware at the time of the original ruling are not 'new or different.' [Citation.]" (In re Marriage of Herr (2009) 174 Cal.App.4th 1463, 1468.) A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time. (New York Times Co. v. Superior Court (2005) 135 Cal. App. 4th 206, 213.) The burden under section 1008 "is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial." (Id. at 212–13.) Here, Defendants have not produced any new facts, circumstances or law. The Court was aware of and addressed Defendants' opposition in its February 24, 2026, ruling. This included Defendants' arguments about Paso Robles Holdings, LLC not being named as a respondent in the petition and Defendants' contention that notice was not provided until after the opposition (the Court found that the petition was timely filed and served). (See ROA 669.) Further, Defendants' counsel raised the argument about 3D CO Holdings, LLC's franchise tax board suspended status at the hearing. (See Oppn at 2:9-11; see, generally, Reply (no dispute as to this fact).) Apart from a party's motion, the court itself has the inherent power to reconsider its rulings it believes to be in error. (Le Francios v. Goel (2005) 35 Cal. 4th 1094, 1108; Golden Door Properties, LLC v. Superior Court of San Diego County (2020) 53 Cal.App.5th 733, 788; In re Marriage of Barthold (2008) 158 Cal. App. 4th 1301, 1307-08.) "Even without a change of law, a trial court

		may exercise its inherent jurisdiction to reconsider an interim ruling. [Citation.]" (Pinela v. Neiman Marcus Group, Inc. (2015) 238 Cal.App.4th 227, 237.) Although Defendants already presented their arguments about 3D Co Holdings, LLC's suspended status at the hearing on the underlying motion (such that it is not a new fact which might entitle Defendants to reconsideration), the Court makes the following additional observations regarding 3D Co Holdings, LLC's suspended status. "There is a difference between the capacity to sue, which is the right to come into court, and the standing to sue, which is the right to relief in court. Incapacity is merely a legal disability, such as infancy or insanity, which deprives a party of the right to come into court. The right to relief, on the other hand, goes to the existence of a cause of action. It is not a plea in abatement, as is lack of capacity to sue." (Color-Vue, Inc. v. Abrams (1996) 44 Cal.App.4th 1599, 1604 (internal citations omitted).) "A defense based on a party's lack of capacity to sue can be forfeited. Specifically, a defense based on a suspended corporation's lack of capacity to sue is a plea in abatement which is not favored in law, is to be strictly construed and must be supported by facts warranting the abatement at the time of the plea. Such a defense must be raised by the defendant at the earliest opportunity, or it is waived." (Rubinstein v. Fakheri (2020) 49 Cal.App.5th 797, 806.) Here, Defendants submit a printout from the California Secretary of State website which purports to reflect that 3D Co Holdings, LLC has been in suspended status since May 1, 2025. (RJN Exh. 2.) The suspension therefore occurred after the arbitrator issued his final award on February 15, 2025. (ROA 656.) The suspension went into place the day after Plaintiffs filed their initial Petition to Confirm Arbitration Award on April 30, 2025. (ROA 620.) Defendants did not raise their argument regarding 3D Co Holdings, LLC's suspended status in their opposition to the initial petition, their supplemental

		briefing regarding the initial petition, or in their written opposition to the petition that is the subject of this motion for reconsideration. (See ROAs 632, 643, 707.) Defendants instead waited until the eleventh hour—at the February 24, 2026, hearing—to raise the issue. At this point 3D Co Holdings, LLC, had been in suspended status for nearly 10 months. The declaration supporting Defendants' motion for reconsideration contends that counsel was unaware of the suspended status at the time the opposition to the underlying motion was due. However, there is no explanation as to why the information could not have been discovered sooner with reasonable diligence. Thus, although Defendants have not met their burden on their motion for reconsideration, the Court additionally finds that Defendants forfeited their argument regarding 3D Co Holdings, LLC's suspended status. Accordingly, the motion is denied. Defendants' requests for judicial notice are granted. Defendants to give notice.
107	**Trejo-Castillo vs. American Honda Motor Co Inc** **23-01318475**	1. Motion to Enforce Settlement 2. Case Management Conference Unopposed Motion to Enforce Settlement is GRANTED. CCP§ 664.6. The Parties Entered into an Enforceable Settlement Agreement on June 13, 2024. (Decl. Gopstein ¶ 4, Exs. 1-2.) Despite prior representations that the settlement funds would be delivered by 12/2/2025, Plaintiff's counsel declares, as of 3/16/2025, "Plaintiff still does not have any concrete information about the Settlement check and therefore, has yet to receive any portion of the settlement funds, with Defendant's counsel's lack of response being a further delay tactic." (Decl. Gopstein¶7.)

		Plaintiff to give notice.
108	**Toppan Merrill LLC vs. Mobix Labs, Inc.** **25-01458566**	Motion to Correct Clerical Error Plaintiff Toppan Merrill LLC's unopposed Motion to Correct Clerical Error is GRANTED. It appears to the Court that there is a clerical mistake in the judgment entered on 5/20/25, in that the Line 6 of Paragraph 6(a) incorrectly indicates that "Total" damages are $315,036.70. This number is the result of a mathematical error, as it does not correctly reflect the total of the three individual components of damage set forth in Paragraph 6 of the judgment. The total is $315,564.70. Accordingly, pursuant to CCP §473(d), the Court will sign Plaintiff's proposed Amended Judgment, which is attached as Exhibit C to the moving papers. The Amended Judgment corrects line 6 of Paragraph 6(a) to reflect the total damages of $315,564.70. Clerk to give notice
109	**Hernandez vs. Montage Laguna Beach, LLC** **25-01521170**	Motion to Compel Arbitration Defendants Montage Laguna Beach, LLC, Sebastian French, Jennifer Beaumont, and Lucia Arcadia ("Defendants") move to compel arbitration and stay the case pending arbitration. Plaintiff Armanda Millicent Hernandez ("Plaintiff") opposed the motion. The Motion is DENIED. "In 2022, Congress amended the FAA by adopting the EFAA." (Doe v. Second Street Corp. (2024) 105 Cal.App.5th 552, 564.) "By its terms, the EFAA applies 'with respect to any dispute or claim that arises or accrues on or after the

		date of enactment of this Act'—i.e., March 3, 2022." (Ibid.) "Under section 402, the applicability of the EFAA is governed by federal law and is to be decided by a court, as opposed to an arbitrator." (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 802, review denied (Dec. 31, 2024), cert. denied (2025) 146 S.Ct. 107 [citing § 402(b)].) The EFAA, 9 U.S.C. § 402, states: "(a) In general.--Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute. (b) Determination of applicability. --An issue as to whether this chapter applies with respect to a dispute shall be determined under Federal law. The applicability of this chapter to an agreement to arbitrate and the validity and enforceability of an agreement to which this chapter applies shall be determined by a court, rather than an arbitrator, irrespective of whether the party resisting arbitration challenges the arbitration agreement specifically or in conjunction with other terms of the contract containing such agreement, and irrespective of whether the agreement purports to delegate such determinations to an arbitrator." (9 U.S.C.A. § 402.) The plain language of 9 U.S.C. § 402 expressly states that "no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the

sexual harassment dispute.” (9 U.S.C.A. § 402, subd. (a).)1

“Under the EFAA, if a plaintiff’s action ‘relates to ... the sexual harassment dispute,’ then, at the plaintiff’s election, the arbitration agreement is not valid or enforceable ‘with respect to’ the entire case/action.” (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 803, review denied (Dec. 31, 2024), cert. denied (U.S., Oct. 6, 2025, No. 24-1215) 2025 WL 2823782 [emphasis added].) “Under the language of section 402(a), a plaintiff who ‘alleg[es] conduct constituting a sexual harassment dispute’ can elect to render an arbitration agreement invalid or unenforceable ‘with respect to’ the plaintiff’s ‘case,’ and not just the ‘sexual harassment dispute.’ ” (Id., at 804 [emphasis added].)

“Allowing a plaintiff ‘alleging conduct constituting a sexual harassment dispute’ (§ 402(a)) to opt out of arbitration for their entire case avoids the potential for inefficiency in having separate proceedings in court and an arbitration forum, and the related additional burden placed on the parties of having to litigate claims in both a court proceeding and an arbitration.” (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 804, review denied (Dec. 31, 2024), cert. denied (U.S., Oct. 6, 2025, No. 24-1215) 2025 WL 2823782.) “In addition, having a clear-cut rule that can be easily applied allows courts to avoid making the sometimes-difficult determination, particularly at the pleading stage, whether a given claim sufficiently overlaps with allegations of sexual harassment.” (Ibid.)

Given the authority above, whether a case is subject to arbitration turns on whether the plaintiff’s action relates to the sexual harassment dispute.

A “‘sexual harassment dispute’ means a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.” (9 U.S.C.A. § 401, subd. (4).)

		“[P]rohibited harassment includes ‘verbal, physical, and visual harassment, as well as unwanted sexual advances.’ [Citation.] In this regard, verbal harassment may include epithets, derogatory comments, or slurs on the basis of sex.” (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 211 [citing Lyle, supra, 38 Cal.4th at pp. 280–281].) “[T]he prohibition against sexual harassment includes protection from a broad range of conduct, [including] the creation of a work environment that is hostile or abusive on the basis of sex.” (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 211 [citing Lyle v. Warner Brothers Television Productions (2006) 38 Cal.4th 264, 277].) “The working environment must be evaluated in light of the totality of the circumstances.” (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 211.) “These may include the frequency of the discriminatory conduct; its severity, whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee’s work performance.” (Ibid.) “The required level of severity or seriousness varies inversely with the pervasiveness or frequency of the conduct.” (Ibid.) “[S]imple teasing, offhand comments, and isolated incidents (unless extremely serious) are not sufficient to create an actionable claim of harassment.” (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 211 [citing Bailey v. San Francisco Dist. Attorney's Office (2024) 16 Cal.5th 611, 628 (Bailey); accord, Miller v. Department of Corrections (2005) 36 Cal.4th 446, 462] [internal quotations omitted].) “The objective severity of harassment should be judged from the perspective of a reasonable person in the plaintiff’s position.” (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200,

211 [citing Bailey, supra, at p. 629; accord, Miller, supra, at p. 462].)

"An employee claiming harassment based upon a hostile work environment must demonstrate that the conduct complained of was severe enough or sufficiently pervasive to alter the conditions of employment and create a work environment that qualifies as hostile or abusive to employees because of their sex." (Lyle v. Warner Brothers Television Productions (2006) 38 Cal.4th 264, 278–279.)

Here, the Court finds that Plaintiff's action is based on and relates to a sexual harassment dispute. As an initial matter, Plaintiff brings her action for discrimination in violation for the FEHA based on gender/sex (and other grounds), harassment/hostile work environment in violation of the FEHA based on gender/sex (and other grounds), retaliation in violation of the FEHA, and failure to prevent discrimination, harassment, or retaliation in violation of FEHA. Plaintiff also brings causes of action for failure to provide reasonable accommodation in violation of FEHA and failure to engage in interactive process in violation of FEHA.

In her operative Complaint, Plaintiff alleges that Defendant Joshua Fisher repeatedly made sexually charged and inappropriate comments to Plaintiff at the workplace, flirted with Plaintiff at the workplace, drunk called Plaintiff late at night during her off-work hours, and made advances towards Plaintiff at the workplace. (See FAC, ¶ 15, subd. (e)-(m).) Plaintiff repeatedly rebuffed Defendant Fisher's advances but Fisher's conduct continued. (Ibid.)

Eventually, however, "Fisher's demeanor and interactions with Plaintiff became antagonistic and hostile after Fisher realized that Plaintiff would not return his advances and engage with his inappropriate comments towards her. Fisher's sexual or romantic comments turned into passive aggressive comments and ignoring her." (FAC, ¶ 15, subd. (k).) Plaintiff

		alleges that Fisher ultimately changed her work schedule from day to nights because she refused to accept, entertain, and reciprocate his sexual comments and advances. The Court finds that changing Plaintiff's work schedule because of her refusal to entertain and reciprocate Defendant Fisher's repeated sexual comments and advances constitutes harassment that altered the conditions of her employment and created a work environment that qualifies as hostile or abusive to her because of her sex. Given the above, the Court finds that Plaintiff's action relates to the sexual harassment dispute and she may therefore "elect to render an arbitration agreement invalid or unenforceable 'with respect to' the plaintiff's 'case,' and not just the 'sexual harassment dispute.'" (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 803-804, review denied (Dec. 31, 2024), cert. denied (U.S., Oct. 6, 2025, No. 24-1215) 2025 WL 2823782.) The Motion to Compel Arbitration is DENIED. The parties' requests for judicial notice are GRANTED. The Court notes that the Court orders provided by the parties are merely persuasive authority. The Court exercises its discretion to consider the late-filed opposition. (Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262; Mackey v. Board of Trustees of California State University (2019) 31 Cal.App.5th 640, 657.) Plaintiff to give notice.
110	**Prime Healthcare Services - Garden Grove, LLC vs. Optumcare Management, LLC**	Motion to Seal Plaintiffs Prime Healthcare Services – Garden Grove LLC, et al. ("Plaintiffs") move pursuant to California Rules of Court, rule 2.550 to seal the following: (1) the

	23-01357480	Prime Hospitals' Motion in Limine No. 2 to Exclude Evidence Regarding the Costs and Margins of Providing Services, (2) the Prime Hospitals' Motion in Limine No. 3 to Exclude Evidence Regarding Patient Accounts Lacking Medical Necessity that Optum Failed to Identify in Discovery, (3) Omnibus Declaration of James L. Poth in Support of the Prime Hospitals' Motions in Limine Nos. 1, 2, and 3, (4) Exhibits A; C; G-I; and K to the Omnibus Declaration of James L. Poth in Support of the Prime Hospitals' Motions in Limine Nos. 1, 2, and 3, (5) Plaintiffs' Opposition to Defendant's Motion in Limine No. 7 to Exclude Expert Testimony of Chris Fritz, (6) Omnibus Declaration of James L. Poth in Support of Opposition to Optum's Motions in Limine, and (7) Exhibits 8-12; 16; 22-24; 2-27; 31-32; 34, and 40 to the Omnibus Declaration of James L. Poth in Support of Oppositions to Optum's Motions in Limine. Defendant OptumCare Management, LLC ("Defendant") filed a notice of non-opposition. Under California Rules of Court, rule 2.550(d), the Court may order a record to be filed under seal if it finds that: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal. 4th 1178, 1218.) When disclosure of private and confidential financial information relating to the business operations of a party would interfere with that party's ability to compete in the marketplace, a sealing order may be appropriate. (See Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273, 1286.)

		Additionally, "[c]ourts have found that the protecting of trade secrets is an interest that can support sealing records in a civil proceeding." (McGuan v. Endovascular Technologies, Inc. (2010) 182 Cal.App.4th 974, 988.) Here, the Court finds that each of the declarations, exhibits, and briefs at issue in the motion to seal either contain references to patient names and account numbers or proprietary information about contracting terms, reimbursement policies, methodologies, or business strategies. Plaintiffs requested sealings are narrowly tailored to those declarations, exhibits, and briefs that contain such private patient information or proprietary and sensitive business information and there is no public interest in this information that overrides the parties' interests. The Motion is GRANTED. Plaintiffs to give notice